

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FOURTH SECTION

CASE OF BARKHATOVA AND OTHERS v. RUSSIA

(Applications nos. 3628/18 and 19 others –
see appended list)

JUDGMENT

STRASBOURG

1 June 2023

This judgment is final but it may be subject to editorial revision.



In the case of Barkhatova and Others v. Russia,

The European Court of Human Rights (Fourth Section), sitting as a Committee composed of:

Faris Vehabović*, President*,
Armen Harutyunyan,
Anja Seibert-Fohr*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 11 May 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. Some applicants also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts); *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014; and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, having dismissed the Government's objection of non-exhaustion in application no. 3628/18, and having taken into account the issue of compliance with the six-month time--imit under Article 35 § 1 of the Convention (see *Saakashvili v. Georgia* (dec.), nos. 6232/20 and 22394/20, §§ 46-59, 1 March 2022, in which the Court addressed the COVID-related extension of the period in question), the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention and its Protocols, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention and its Protocols in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65,

13 February 2018; *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018; and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a prosecuting party in the proceedings under the Code of Administrative Offences (the CAO); and *Tsvetkova and Others*, cited above, §§ 186-88, and *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, relating to the lack of suspensive effect on an appeal against the sentence of detention.

V. REMAINING COMPLAINTS

14. Some applicants raised further additional complaints under Articles 5 and 6 of the Convention concerning other aspects of their deprivation of liberty and fairness of the administrative-offence proceedings. In view of the findings in paragraphs 11-13 above, the Court considers that there is no need to deal separately with these remaining complaints.

15. Lastly, the Court has examined the remainder of the complaints raised by the applicants in applications nos. 5157/18, 31838/18 and 12606/19 and considers that, in the light of all the material in its possession and in so far as the matters complained of are within its competence, these complaints either do not meet the admissibility criteria set out in Articles 34 and 35 of the Convention or do not disclose any appearance of a violation of the rights and freedoms enshrined in the Convention or the Protocols thereto. It follows that this part of the applications must be rejected in accordance with Article 35 § 4 of the Convention.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

16. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with the applicants' complaints as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under well-established case-law of the Court, as set out in the

appended table, admissible, *decides* that there is no need to examine separately the remaining complaints under Articles 5 and 6 of the Convention and *declares* the remainder of applications nos. 5157/18, 31838/18 and 12606/19 inadmissible;

4. *Holds* that these complaints disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under well-established case-law of the Court (see appended table);

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 1 June 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Faris Vehabović
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	3628/18 23/12/2017	**Irina Alekseyevna BARKHATOVA** 1986	Popkov Aleksandr Vasilyevich Sochi	Anti-corruption manifestation Sochi 12/06/2017	Article 20.2 § 6.1 of CAO	fine of RUB 20,000	Krasnodar Regional Court 12/07/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
2.	3863/18 26/12/2017 and 24270/19 11/04/2019	**Svetlana Anatolyevna UTKINA** 1968	Andreyev Viktor Alekseyevich St Petersburg	Opposition manifestation St Petersburg 29/04/2017 Manifestation for fair elections to Mosgorduma Moscow 27/07/2019 Political manifestation St Petersburg 07/10/2018 Rally in support of Khabarovsk and Belarus protests St Petersburg 15/08/2020	Article 20.2 § 5 of CAO Article 20.2 § 5 of CAO Article 20.2 § 6.1 of CAO Article 20.2 § 8 of CAO	fine of RUB 10,000 35 hours' compulsory work 5 days' administrative arrest 10 days' administrative detention	St Petersburg City Court 11/07/2017 Moscow City Court 22/08/2019 St Petersburg City Court 15/10/2018 St Petersburg City Court 18/02/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - three of the above sets of proceedings, which ended with the final judgments of 15/10/2018, 22/08/2019 and 18/02/2021, respectively.	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
3.	5157/18 08/01/2018	**Yuliya Viktorovna MYSHEVA** 1986	Terekhov Konstantin Ilyich Moscow	Anti-corruption manifestation Moscow 26/03/2017 Rally in support of A. Navalnyy Moscow 31/01/2021	Article 20.2 § 5 of CAO Article 20.2 § 6.1 of CAO	fine of RUB 10,000 fine of RUB 15,000	Moscow City Court 24/07/2017 Moscow City Court 09/11/2021	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station, detention (i) on 26/03/2017, and (ii) 31/01/2021, for the sole purpose of drawing up a record of administrative offence on both occasions; delayed escorting to a police station on 31/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - both sets of proceedings.	4,000
4.	7553/18 27/01/2018 and 12606/19 05/02/2019	**Yelena Anatolyevna PARIY** 1969	Tiunov Sergey Yuryevich Yekaterinburg	"Stroll in Support of Opposition movement "Artpodgotovka"" Yekaterinburg 23/07/2017 Manifestation against the pension reform Yekaterinburg 09/09/2018	Article 19.3 § 1 of CAO and Article 20.2 § 5 of CAO Article 20.2 § 8 of CAO	9 days of administrative arrest and fine of RUB 10,000 15 days of administrative detention	Sverdlovsk Regional Court 01/08/2017 and Sverdlovsk Regional Court 14/11/2017 Sverdlovsk Regional Court 14/09/2018	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station, detention between 09/09/2018 and 11/09/2018 as administrative suspect: no evidence/ assessment of any exceptional circumstances under the CAO; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings (all sets of proceedings).	6,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
5.	13182/18 26/02/2018	**Vasiliy Eduardovich LI** 1999	Terekhov Konstantin Ilyich Moscow	Anticorruption manifestation Vladivostok 12/06/2017	Article 19.3 § 1 of CAO	fine of RUB 500	Primorye Regional Court 30/08/2017	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station, detention on 12/06/2017 for the sole purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
6.	26103/18 10/05/2018	**Andrey Vasilyevich ZHUZHGOV** 1969	Benyash Mikhail Mikhaylovich Sochi	Manifestation in support of A. Navalnyy Krasnodar 07/11/2017	Article 20.2 § 5 of CAO	35 hours of compulsory work	Krasnodar Regional Court 06/12/2017		3,500
7.	31838/18 25/06/2018	**Petr Valeryevich MASLOV** 1988	Memorial Human Rights Centre Moscow	Anti-corruption manifestation Moscow 12/06/2017 Rally in support of A. Navalnyy Moscow 31/01/2021	Article 20.2 § 5 of CAO Article 20.2 § 5 of CAO	fine of RUB 10,000 fine of RUB 10,000	Moscow City Court 12/04/2018 Moscow City Court 17/05/2021	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station and detention (i) on 12/06/2017, and (ii) on 31/01/2021, in each case for the sole purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - both sets of proceedings, final judgments issued on 12/04/2018 and 17/05/2021	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
8.	55764/18 13/11/2018	**Ilya Khaimovich MYASKOVSKIY** 1971		Manifestation against the pension reform Nizhniy Novgorod 09/09/2018 Rally in memory of Boris Nemtsov Nizhniy Novgorod 25/02/2018	Article 20.2 § 8 of CAO Article 20.2 § 8 of CAO	20 days' administrative detention 20 days' administrative detention	Nizhniy Novgorod Regional Court 14/11/2018 Nizhniy Novgorod Regional Court 16/05/2018	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station, detention between 11/09/2018 and 12/09/2018 as administrative suspect; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - both sets of the administrative-offence proceedings; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant on 12/09/2018 was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	6,000
9.	1523/19 14/12/2018	**Sergey Aleksandrovich KAN** 1986	Glukhov Aleksey Vladimirovich Novocheboksarsk	Opposition manifestation Cheboksary 05/05/2018	Article 20.2 § 5 of CAO	fine of RUB 20,000	Supreme Court of the Republic of Chuvashia 03/07/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
10.	22697/19 12/04/2019	**Svetlana Valeryevna LOZOVSKAYA** 1975	Sholokhov Igor Nikolayevich Kazan	Manifestation against the pension reform Ulan-Ude 09/09/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Buryatia Republic 15/11/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
11.	29381/19 16/05/2019 and 27859/20 12/06/2020	**Valeriya Ivanovna SKOROBOGATOVA** 1970	29381/19 Yelanchik Oleg Aleksandrovich Moscow 27859/20 Timakova Kristina Igorevna Moscow	Opposition manifestation Moscow 05/05/2018 Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO Article 20.2 § 8 of CAO	fine of RUB 15,000 fine of RUB 250,000 (not paid by the applicant)	Moscow City Court 16/11/2018 Moscow City Court 22/10/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station, detention (i) on 05/05/2018 for the sole purpose of drawing up a record of administrative offence; and (ii) 27/07/2019 and 29/07/2019 as administrative suspect: no evidence/ assessment of any "exceptional circumstances" under the CAO; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings (both sets of proceedings)	4,000
12.	9711/20 30/01/2020	**Nikita Igorevich PETROV** 1990	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 12/11/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
13.	10236/20 12/02/2020	**Nikolay Andreyevich LOGVIN** 1993	Yatsenko Irina Aleksandrovna Moscow	Manifestation in support of Ivan Golunov Moscow 12/06/2019	Article 20.2 § 8 of CAO	fine of RUB 150,000	Moscow City Court 12/08/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station, detention there on 12/06/2019 for the sole purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

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14.	10704/20 17/02/2020	**Andrey Viktorovich OREL** 1977	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 14/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 02/10/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station, detention on 14/07/2019 for the sole purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
15.	14243/20 22/01/2020	**Petr Nikolayevich ALESHIN** 1965	Zboroshenko Nikolay Sergeyevich Mytishchi	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 02/10/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station and detention on 27/07/2019 for the sole purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

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16.	25541/20 03/06/2020	**Artemiy Sergeyevich BOBROV** 1992	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma Moscow 10/08/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 02/10/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and escorting on 10/08/2019 to the police office for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours (raised on appeal)	4,000
17.	31415/20 30/06/2020	**Daniil Konstantinovich LATYSHEV** 1999	Yatsenko Irina Aleksandrovna Moscow	Opposition manifestation for freedom of assembly Moscow 30/01/2019	Article 20.2 § 8 of CAO	fine of RUB 200,000	Moscow City Court 30/09/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500

[1] Plus any tax that may be chargeable to the applicants.